SEC Form 8-K Item 1.05 materiality worksheet

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Item 1.05 of Form 8-K is due within four business days after the company determines a cybersecurity incident is material. The clock starts at the determination, not at discovery. Determine materiality without unreasonable delay. Count business days, skipping weekends and federal holidays.

1. Incident and escalation

Incident discovered (date, time, zone)	
Who escalated it	
When it was escalated	
Who owns the materiality decision	

2. Evidence considered

Systems and data affected	
Operational impact	
Financial impact (range)	
Customer, legal or regulatory exposure	
Reputational factors	
Threshold note (qualitative and quantitative)	

3. Determination

Material? (Yes / No / Not yet)	
Determined by (names, roles)	
Date and time of determination	
Filing due (4th business day)	
Holidays skipped in the count	
Counsel consulted	

Board or committee informed (date)	

Checklist

[ ] Decision owner named before an incident, with a deputy

[ ] Record kept of who decided, when, and on what evidence

[ ] Business-day count checked against the federal holiday calendar

[ ] Disclosure committee and counsel contact list current

[ ] Re-review date set if the answer is Not yet